

**FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges**

TOYOTA DE PUERTO RICO, CORP.
Complainant

Docket No. 19-02

v.

PUERTO RICO PORTS AUTHORITY;
CROWLEY PUERTO RICO SERVICES;
AND OCEANIC GENERAL AGENCY INC.
Respondents

**INFORMATIVE MOTION AND TO STRIKE RESPONDENT'S MOTION TO COMPEL
DISCOVERY**

TO THE HONORABLE COMMISSION:

COMES NOW, Complainant, Toyota de Puerto Rico Corp., (herein after "Toyota") by and through the undersigned attorneys, and very respectfully submits this Informative Motion and to Strike Respondent's Motion to Compel Discovery.

1. As per the Revised Scheduling Order issued by this Honorable Commission on October 22, 2019, all discovery must have been completed by November 12, 2019.
2. Toyota informs that it took the deposition of PRPA's representative last November 1, 2019, after receiving Puerto Rico Ports Authority's (PRPA) document disclosures on October 30, 2019. It has thus completed all discovery in the case, as ordered.
3. Respondent, however, filed a Motion to Compel Discovery at 11:56pm AST. Since the period granted by this Honorable Commission to resolve discovery disputes had already expired, this motion should be struck from the record.

4. Toyota provided the responses to Respondent's written requests almost three months ago. The delay in requesting the documents is therefore not justified, and the motion to compel must be struck from the record.

WHEREFORE, Toyota respectfully requests that this Honorable Commission takes knowledge of Toyota's compliance with the discovery schedule and strike from the record Respondent's Motion to Compel. Should the Commission grant the filing of the Motion to Compel, Toyota respectfully requests that it is granted five business days to respond to the Motion.

RESPECTFULLY SUBMITTED.

In San Juan, Puerto Rico, this 13th day of November, 2019.

CERTIFICATE OF SERVICE

I hereby certify that on this same date we served a copy of the foregoing document upon each and all parties of record through their respective attorneys by electronic mailing to the following addresses:

Thomas Trebilcock, Esq.- ttrebilcock@trebilcockrovira.com

REICHARD & ESCALERA LLC

Attorneys for

Toyota of Puerto Rico

MCS Plaza, Suite 1000

255 Ave. Ponce de León

Hato Rey, PR 00918

P.O. Box 364148

San Juan, PR 00936-4148

Tel: (787) 777-8888/Fax: (787) 765-4225

RAFAEL ESCALERA RODRIGUEZ

Puerto Rico Bar No. 5,310

U.S.D.C. NO. 122609

E-mail: escalera@reichardescalera.com

/s/Sylvia M. Arizmendi

SYLVIA M. ARIZMENDI

Puerto Rico Bar No. 10,337

U.S.D.C. NO. 210714

E-mail: arizmendis@reichardescalera.com

/s/Alana M. Vizcarrondo-Santana

ALANA M. VIZCARRONDO SANTANA

Puerto Rico Bar No.18,840

U.S.D.C. NO. 301614

E-mail: vizcarrondo@reichardescalera.com